

OPTIMAL SELECTION: APPLICATION TO JUDGES

OUTLINE

JUDICIARY

TERM LIMITS

THE JUDICIARY

The judicial branch is an important part of government

In many countries, the judicial branch is separated from other branches of government (more about this in the next class)

How should we select judges?



HETEROGENEITY IN HOW JUDGES ARE SELECTED

In the United States:

- ▶ Federal judges are nominated by the President, confirmed by the Senate, and serve life terms
- ▶ In 27 states governors appoint supreme court judges, in 21 states have elections
- ▶ Some need to be reappointed or stand for election
- ▶ Some are term limited
- ▶ Other state judges elected by variety of procedures

We will discuss pros and cons of different solutions

WHAT DO WE WANT FROM AN IDEAL JUDGE?

- ▶ Expertise and competence (selection)
- ▶ Effort (accountability)
- ▶ Independence in their judgement from undue influence (selection and accountability)
- ▶ Using societal and not personal values (selection and accountability)
- ▶ Consistency of ruling (selection and accountability)

SHOULD WE ELECT OR APPOINT JUDGES?

1. Should judges be appointed by the executive or elected directly by voters?
2. Should judges serve (1) for life, (2) have shorter but unlimited number of terms (3) be term limited?
3. How will the different selection methods affect the legitimacy of the judicial branch?

EVIDENCE: ELECTED JUDGES RULE MORE IN LINE WITH CITIZENS' PREFERENCES (SOURCE: CEG POLICY PRIMER)

Probability that a supreme court upholds the imposition of death penalty increases with the conservatism of the state

- ▶ Relationship exists only for judges elected or appointed by governor, not those selected by independent body

Elected state judges are associated with

- ▶ Higher tort awards (awards compensating victims instead of punishing the wrongdoer)
- ▶ More employment discrimination cases
- ▶ Harsher rulings especially closer to election time

Is this evidence of accountability or pandering?

EVIDENCE: ELECTED JUDGES' RULE IN LESS CONSISTENT WAY

Elected judges are associated with lower rates of litigation

- ▶ Logic: independence from executive → uncertainty over judges' ruling → lower incentive to start litigation

Elected judges are associated with more but lower quality judicial opinions

- ▶ Logic: quantity is more observed by voters than quality
- ▶ Logic: voters cannot select judges on quality

SUPREME COURT

9 Justices

Nominated by the President and confirmed by the Senate

Life tenure

Justices have the ability to declare laws or executive actions unconstitutional

In light of our discussion, what are your thoughts on life term for the U.S. Supreme Court?

In light of our discussion, what are your thoughts on the selection method for Supreme Court?

CAREER CONCERNS AFFECT LEADERS' DECISIONS

Term-limited leaders care less about the winning coalition

Her behavior is driven by her prospects after her term finishes

Incentives of life appointed leaders are not the same as those of term limited leaders

- ▶ Term limited leaders care about how their actions affect their (career) prospects after they step down
- ▶ E.g., a leader wanting a job in industry may be lenient toward this industry
- ▶ E.g., a leader wanting to give paid speeches and publish books may be more inclined to take bold actions

TAKING STOCK

No perfect selection mechanism exists

Which mechanism is better depends on what is more important in particular situation

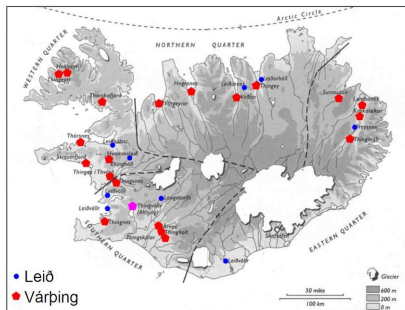
- ▶ Expertise $\implies$ appointment and shorter terms
- ▶ Consistency $\implies$ appointment and long or life terms
- ▶ Independence from other points of power and responsiveness to citizen's values $\implies$ elections

ICELANDIC COMMONWEALTH

Icelandic Commonwealth
(930–1262 AD)

Had courts but no central
government, king, or police
force to enforce them

Litigants needed to enforce the
judgements themselves



SELECTION MECHANISM AND LEGITIMACY

Legitimacy is **extremely important** for the judicial system

- ▶ Judges have no police!

What selection mechanism is most likely to promote legitimacy?

SELECTION MECHANISM AND LEGITIMACY

Election may be legitimizing because

- ▶ Procedural legitimacy
- ▶ Citizens get a voice

But appointment by executive or independent body as well

- ▶ Procedural legitimacy
- ▶ Citizens (indirectly) get a voice if executive body or independent body selected by citizens

Election introduces pandering to voters and inconsistency in ruling which may lower the perceived legitimacy of the ruling

Requiring re-appointment may be legitimizing as it increases accountability

LIVE STREAMING TRIALS

Judges in China are selected based on legal qualifications, exams, and political evaluation

Judges rule against the state and powerful litigants more frequently when proceedings live streamed

(Liu, Peng, Wang 2025)

- ▶ Is it likely to be pandering? (Who is the selectorate?)
- ▶ Perhaps to uphold legitimacy?

WHY DOES THIS MATTER TO CITIZENS?

Understanding selection of judges helps advance **your** interest

- ▶ Suppose you are a plaintiff in a tort case in a state with elected judges. Would you prefer your case to be heard close to a judicial election or far from it? Why?
- ▶ Does your answer change if you are a criminal defendant rather than a prosecutor?
- ▶ If you represent a victims' rights group, when would you want to push high-profile cases into court?
- ▶ If you represent business interests worried about tort liability, how might you adapt your legal strategy?

OUTLINE

JUDICIARY

TERM LIMITS

TERM LIMITS

What are the costs of imposing a term limit on a leader?

What are the benefits of imposing a term limit on a leader?

In which circumstances do you think term limits are most appropriate?

WHAT ARE THE COSTS OF IMPOSING A TERM LIMIT ON A LEADER?

Lesser accountability: voters cannot use the threat of firing

Worse selection: voters cannot retain high quality leaders

WHAT ARE THE BENEFITS OF IMPOSING A TERM LIMIT ON A LEADER?

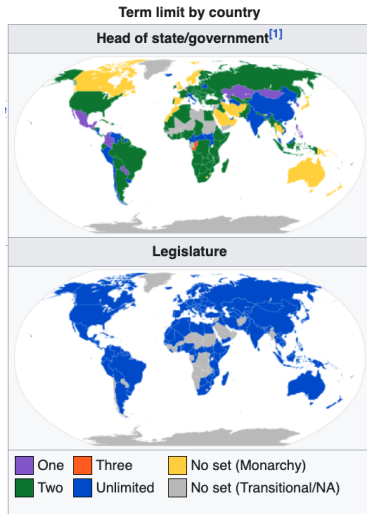
Fewer incentives to pander

Fewer chances to entrench

WHEN ARE TERM LIMITS MOST APPROPRIATE?

For executives who have resources to entrench themselves

For leaders whose primary task is to solve problems that have long term benefits but incurs short term costs



Hall (2015)

PLEASE READ

CEG Policy Primer on Judicial Appointments

CEG Policy Primer on Term Limits